

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 7740/05
by SOYUZ AVTOROV UKRAINY
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 7 December 2010 as a Committee composed of:

Mark Villiger, *President,*
Isabelle Berro-Lefèvre,
Ganna Yudkivska, *judges,*

and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 14 February 2005,

Having deliberated, decides as follows:

THE FACTS

The application was lodged by the public organisation Soyuz Avtorov Ukrainy (The Union of Authors of Ukraine); a non-governmental non-profit organisation set up in Ukraine in 2003 and located in Lugansk. The Ukrainian Government ("the Government") were represented by their Agent, Mr Yuriy Zaytsev.

The applicant complained under Article 11 of the Convention about refusal of the State Intellectual Property Department to include it on the register of the copyright collectives.

The applicant's complaints concerning lawfulness and proportionality of the refusal to be included on the register of the copyright collectives were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit its own observations. No reply was received to

the Registry's letter. The last correspondence from the applicant was received on 14 June 2005.

By letter dated 29 July 2010, sent to the applicant's address by registered post, the applicant was notified that the period allowed for submission of its observations had expired on 1 June 2010 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue its application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips
Deputy Registrar

Mark Villiger
President